

Kathmandu Valley Development Authority Act, 1988

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Kathmandu Valley Development Authority Act, 2045

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Amending Acts

1. Administration of Justice Act, 2048 2048.2.16
2. Republic Strengthening and Some Nepal Laws Amendment Act, 2066 2066.1.07
3. Some Nepal Acts Amendment Act, 2072 2072.11.13
4. Some Nepal Acts Amendment Act, 2075 2075.11.19

Act Number 23 of the year 2045

An Act Made to Establish and Make Provision for the Kathmandu Valley Development Authority

Preamble: Whereas, in the context of increasing population and urbanization in the Kathmandu Valley, it is desirable to establish and make provision for the Kathmandu Valley Development Authority for the reconstruction, expansion and development of existing cities, as well as planned physical development, providing necessary services and facilities to the public, and maintaining health facilities and economic well-being of the general public,

Therefore, His Majesty King Birendra Bir Bikram Shah Dev, with the advice and consent of the National Panchayat, has enacted this Act. 1. Short Title and Commencement: 1.1 This Act may be called the "Kathmandu Valley Development Authority Act, 2045". 1.2 This Act shall come into force from the date appointed by the Government of Nepal by notification published in the Nepal Gazette. 2. Definitions: 2.1 Unless the subject or context otherwise requires, in this Act,-

2.1.1 "Authority" means the Kathmandu Valley Development Authority established pursuant to Section 3. 2.1.2 "Physical Development Plan" means the physical development plan formulated pursuant to Section 5 and approved by the Government of Nepal. 2.1.3 "Plan Area" means the Kathmandu Valley Development Plan Area as mentioned in the Schedule. 2.1.4 "Committee" means the Kathmandu Valley Physical Development Committee constituted pursuant to Section 13. 2.1.5 "Executive Committee" means the Executive Committee constituted pursuant to Section 14. 2.1.6 "Development Commissioner" means the Development Commissioner appointed pursuant to sub-section (17.1) of Section 17. 2.1.7 "Appeal Committee" means the Appeal Committee pursuant to Section 23. 2.1.8 "Land" means any land and includes houses, structures, ponds, tanks, trees, etc. permanently situated thereon. 2.1.9 "Building" means a building or house constructed for residential, office, industrial, commercial or any other use, and the term also includes warehouse, shed, cowshed, garage, latrine, wall or any part thereof. 2.1.10 "Service Facilities" means roads, paths, open spaces, parks, recreation areas, playgrounds, water, electricity, telephone, drainage, schools, hospitals, etc. 2.1.11 "Prescribed" or "as prescribed" means prescribed or as prescribed in

the rules or regulations made under this Act. 3. Establishment of Authority: A Kathmandu Valley Development Authority is established for the formulation and implementation of a physical development plan to develop the Kathmandu Valley in a planned manner and provide necessary services and facilities to the public. 4.

Authority to be a Corporate Body: 4.1 The Authority established pursuant to Section 3 shall be a self-governing and corporate body with perpetual succession. 4.2 The Authority shall have its own separate seal. 4.3 The Authority may, like a person, acquire, use, sell or otherwise dispose of movable and immovable property. 4.4 The Authority may, like a person, sue and be sued in its own name. 5. Formulation and Approval of Physical Development Plan: 5.1 For the physical development of the Kathmandu Valley, the Authority may formulate a physical development plan to fulfill any or all of the following objectives:- 5.1.1 To develop the Kathmandu Valley as a major administrative, tourism, cultural and economic center of Nepal Deleted by Republic Strengthening and Some Nepal Laws Amendment Act, 2066., 5.1.2 To reconstruct, expand and develop existing cities and construct new cities, 5.1.3 To determine land use zones for physical development, 5.1.4 To make available necessary service facilities to the public, 5.1.5 To carry out other functions related to the above tasks. 5.2 The physical development plan prepared by the Authority pursuant to sub-section (5.1) shall be approved by the Government of Nepal. 5.3 The physical development plan approved by the Government of Nepal pursuant to sub-section (5.2) shall be implemented by the Authority. 6.

Functions, Duties and Powers of the Authority: 6.1 In addition to the functions, duties and powers otherwise mentioned in this Act, the functions, duties and powers of the Authority shall be as follows:- 6.1.1 To divide the Plan Area into various land use zones, 6.1.2 To determine necessary conditions for physical development in land use zones and prescribe methods of construction in such zones, 6.1.3 Subject to the prevailing Nepal law relating to ancient monuments, to prepare and implement necessary projects for the proper development and preservation of any religious, cultural and historical heritage in the Plan Area, 6.1.4 For the protection of natural and environmental resources of the Plan Area, to prescribe conditions and act or cause to be acted accordingly in relation to construction and other activities in forests, streams, river banks and water areas, 6.1.5 To prohibit the use of natural resources in a manner causing adverse effects, 6.1.6 To prepare and implement land development programs and building construction projects in land use zones as specified by the physical development plan, 6.1.7 To carry out other functions as per directives given from time to time by the Government of Nepal in accordance with the physical development plan. 6.2 While carrying out actions under this Act, it shall be the duty of the Authority to maintain coordination with agencies of the Government of Nepal and other concerned bodies. 7. Power to Impose Freeze: 7.1 For implementing the physical development plan, the Authority may, by publishing a clear public notice from time to time, impose a freeze for a period not exceeding three years as specified in that notice, prohibiting any physical alteration or subdivision of any type of immovable property within the area specified in such notice falling within the Plan Area without prior approval of the Authority. 7.2 The Authority shall send a notice of the freeze imposed pursuant to sub-section (7.1) to the concerned office responsible for registration. 7.3 Upon receiving the notice pursuant to sub-section (7.2), the concerned registration office shall not register the subdivision of such immovable property. 8.

Power to Regulate, Control or Prohibit: 8.1 For the purpose of implementing the physical development plan, the Authority may, by publishing a clear public notice from time to time, regulate, control or prohibit, as necessary, the following matters within the area specified in such notice falling within the Plan Area, and no one shall do or cause to be done such regulated, controlled or prohibited matters without prior approval of the Authority:- 8.1.1 Using and consuming natural resources, archaeological, religious, historical sites, government lands and immovable property, 8.1.2 Using or consuming cultivated and barren lands in

accordance with the land use plan, 8.1.3 Constructing any type of building or expanding existing buildings, 8.1.4 Establishing any type of settlement or residence, or establishing or constructing recreation areas, markets, fairs, industries, etc., 8.1.5 Doing any work that adversely affects natural beauty, tourist sites, or public health, or pollutes the environment in any manner, 8.1.6 Using roads, bridges, means of transport, water, electricity, telephone lines, etc. 8.2 While imposing any restriction on the enjoyment of anyone's immovable property under Section 7 or sub-section (8.1), the Authority may impose restrictions only if it is in the public interest and beneficial to the general public, and while making a decision regarding such restriction or issuing a notice or order related thereto, the public interest aspect shall also be clearly mentioned. 8.3 For the purpose of sub-section (8.1), the Authority may grant approval partially or fully, or refuse approval, or while granting approval, may impose necessary conditions. 8.4 The Authority shall have full authority to enter anyone's land or inquire with the concerned person for the purpose of collecting data or surveying any immovable property within the Plan Area. 9. Power to Stop or Demolish: 9.1 If anyone does any matter regulated, controlled or prohibited by the Authority under Section 8 without prior approval of the Authority, or if any condition imposed by the Authority while granting approval is violated, the Authority may issue an order to immediately stop such work, and if any construction has been made in the course of such work, the Authority may, giving a period of thirty-five days, order the concerned person to demolish or remove the part so constructed without approval or contrary to conditions.

9.4 If the concerned person fails to demolish or remove such part of the construction within the period mentioned in sub-section (9.3), the Authority may itself demolish or remove it, and the cost incurred for such demolition or removal shall be recovered from the concerned person. 10. Power to Operate Land Development Programs:

10.1 In the process of planned development of the Kathmandu Valley, to fulfill the basic housing needs of persons of different income groups, to provide housing plots, and for other urban activities, the Authority may, subject to the policies and directives of the Government of Nepal, operate land development programs as follows:-

10.1.1 To operate a guided land development program in any part of the Plan Area by involving local landowners and tenants in formulating service facility projects, and to have the concerned agency of the Government of Nepal, any corporate body, municipality, or local people invest in carrying out the work according to such project,

10.1.2 To operate a land pooling program by consolidating various plots of land in any part of the Plan Area, providing service facilities in accordance with the physical development plan, recovering the cost incurred for providing such facilities by selling developed plots, and returning the remaining developed plots to the original landowners or tenants on a proportional basis,

10.1.3 To operate a sites and services program by having the land in any part of the Plan Area acquired by the Government of Nepal pursuant to Section 11, providing service facilities on such land by the Authority itself, preparing plots, and selling and distributing them,

10.1.4 If, for operating a land development program pursuant to the above sub-sections, the consolidated or acquired land of a landowner is less than the minimum unit plot area determined according to the land development program, such landowner shall be provided with one plot of the minimum unit upon payment of the cost incurred. 11. Power to Acquire Land:

The Government of Nepal may acquire land required for implementing the physical development plan in

accordance with the prevailing Nepal law and make it available to the Authority. 12. Power to Raise Financial Resources:

The Authority may, with prior approval of the Government of Nepal, borrow loans, receive grants, or raise financial resources in any other manner for the expenses required to smoothly carry out its functions. 13.

Constitution and Functions, Duties and Powers of the Kathmandu Valley Physical Development Committee: Amended by Some Nepal Acts Amendment Act, 2075.13.1 For the development of the Kathmandu Valley, a Kathmandu Valley Physical Development Committee shall be constituted consisting of the following members:- 13.1.1 Minister for Urban Development ? Chairperson 13.1.2 Minister in charge of Urban Development of the concerned Province ? Member 13.1.3 Secretary, Ministry of Finance ? Member 13.1.4 Secretary, Ministry of Water Supply ? Member 13.1.5 Secretary, Ministry of Land Management, Cooperatives and Poverty Alleviation ? Member 13.1.6 Secretary, Ministry of Physical Infrastructure and Transport ? Member 13.1.7 Secretary, National Planning Commission ? Member 13.1.8 Secretary, Ministry of Forests and Environment ? Member 13.1.9 Secretary, Ministry of Urban Development ? Member 13.1.10 Secretary, Ministry of Communication and Information Technology ? Member 13.1.11 Secretary, Ministry of Culture, Tourism and Civil Aviation ? Member 13.1.12 Secretary, Ministry of Federal Affairs and General Administration ? Member 13.1.13 Mayor of Kathmandu Metropolitan City ? Member 13.1.14 Mayor of Lalitpur Metropolitan City ? Member 13.1.15 Mayor of Bhaktapur Municipality ? Member 13.1.16 Mayors of three municipalities designated by the Ministry from among other municipalities in the Kathmandu Valley ? Member 13.1.17 Development Commissioner ? Member Secretary 13.2 The Government of Nepal may, if deemed necessary, by notification published in the Nepal Gazette, make necessary additions, deletions or changes among the members pursuant to sub-section (13.1). 13.3 The procedure relating to meetings of the Committee shall be as prescribed. 13.4 The functions, duties and powers of the Committee shall be as follows:- 13.4.1 To determine policy relating to formulation and implementation of the physical development plan, 13.4.2 To finalize the physical development plan, 13.4.3 To review and evaluate the progress of programs under the physical development plan, 13.4.4 To approve the annual budget and regulations of the Authority, 13.4.5 To give other necessary directives to the Executive Committee. 14. Constitution of Executive Committee: 14.1 An Executive Committee shall be constituted for the operation, supervision and management of the functions of the Authority. 14.2 Subject to the general direction of the Committee, the Executive Committee shall exercise all powers and perform all duties vested in the Authority in accordance with this Act and the rules and regulations made under this Act.

14.3 The Executive Committee constituted pursuant to sub-section (14.1) shall consist of the following members:- 14.3.1 Development Commissioner ? Chairperson Amended by Republic Strengthening and Some Nepal Laws Amendment Act, 2066.14.3.2 Mayor of Kathmandu Metropolitan City ? Member Amended by Republic Strengthening and Some Nepal Laws Amendment Act, 2066.14.3.3 Mayor of Lalitpur Sub-Metropolitan City ? Member Amended by Republic Strengthening and Some Nepal Laws Amendment Act, 2066.14.3.4 Mayor of Bhaktapur Municipality ? Member 14.3.5 Heads in charge of Kathmandu Valley programs of the following offices ? Member 14.3.5.1 Department of Buildings 14.3.5.2 Department of Archaeology 14.3.5.3 Department of Roads 14.3.5.4 Department of Survey 14.3.5.5 Department of Tourism 14.3.5.6 Department of Housing and Urban Development 14.3.5.7 Water Supply and Sewerage Corporation 14.3.5.8 Nepal Electricity Authority 14.3.5.9 Solid Waste Management and Resource Mobilization Center 14.3.5.10 Guthi Corporation 14.3.5.11 Nepal Telecommunications Corporation Amended by Some Nepal Acts Amendment Act, 2075.14.3.6 Three persons designated by the Ministry of Urban Development from among experts relating to urban development management, ensuring inclusive representation ? Member 14.4

An employee of the Authority designated by the Executive Committee shall act as the Secretary of the Executive Committee. 14.5 The Government of Nepal may, if deemed necessary, by notification published in the Nepal Gazette, make necessary additions, deletions or changes among the members pursuant to sub-section (14.3). 14.6 The Executive Committee may, if deemed necessary, invite any domestic or foreign expert or advisor to participate in the meeting of the Executive Committee as an observer. 15. Procedure Relating to Meetings of the Executive Committee: 15.1 A meeting of the Executive Committee shall be held at least once every two months. 15.2 If fifty percent of the total number of members of the Executive Committee are present, the meeting of the Executive Committee shall be deemed to have constituted a quorum. 15.3 The meeting of the Executive Committee shall be chaired by the Chairperson, and in their absence, by a member designated by the members from among themselves. 15.4 The opinion of the majority shall prevail in the meeting of the Executive Committee, and in case of a tie, the person chairing the meeting may cast a casting vote. 15.5 The meeting of the Executive Committee shall be called by the Secretary of the Executive Committee on the date, time and place fixed by the Chairperson. 15.6 The decisions made in the meeting of the Executive Committee shall be certified by the person chairing the Executive Committee and kept updated.

15.7 Other procedures relating to the meeting of the Executive Committee shall be determined by the Executive Committee itself. 16. Power to Constitute Sub-Committees: The Executive Committee may, as necessary, constitute sub-committees to smoothly carry out its functions. 17. Provision Relating to Employees: 17.1 The Government of Nepal shall appoint a person who is serving or has served in the Special Class or above, or any reputed person in the related field, as the Development Commissioner as the Chief Executive of the Authority. Their term shall be up to five years, and if the Government of Nepal so desires, their term may be renewed for up to another five years. 17.2 Notwithstanding anything written in sub-section (17.1), the Government of Nepal may, if deemed necessary, retire the Development Commissioner from that post before the completion of their term. 17.3 The Authority may appoint other employees as required. 17.4 The remuneration, terms of service and facilities of the Development Commissioner and other employees of the Authority shall be as prescribed. 17.5 The Development Commissioner may delegate the powers vested in them to any employee subordinate to them under their supervision and responsibility. 18. Prohibition on Members and Employees: No member of the Committee or the Executive Committee, nor any employee or advisor of the Authority, shall be directly or indirectly interested in any contract or lease with the Authority. 19. Fund of the Authority: 19.1 There shall be a separate fund of the Authority. The following amounts shall be credited to such fund:- 19.1.1 Grant received from the Government of Nepal, 19.1.2 Amount received from any international or foreign agency through the Government of Nepal, 19.1.3 Amount accruing from the movable and immovable property of the Authority, 19.1.4 Any other amount received by the Authority. 19.2 All amounts of the Authority shall be deposited in the Nepal Rastra Bank or any commercial bank in the name of the Authority. 19.3 All expenses to be borne on behalf of the Authority shall be met from the fund pursuant to sub-section (19.1). 19.4 Operation of the account of the Authority shall be as prescribed. 20. Accounts and Audit of the Authority: 20.1 The accounts of the Authority shall be maintained in accordance with the prevailing format and method of the Government of Nepal. 20.2 The audit of the Authority shall be carried out by the Office of the Auditor General. 20.3 The Government of Nepal may, if it so desires, at any time inspect or cause to be inspected the account books, documents, cash and stock of the Authority.

21. Penalty: 21.1 If anyone does any matter regulated, controlled or prohibited by the Authority under Section 8 without prior approval of the Authority, or if any condition imposed by the Authority while granting approval is violated, the Authority may impose a fine of up to fifty thousand rupees on such person. 21.2 If anyone obstructs any work done or to be done by the Authority in accordance with this Act or the regulations made

under this Act, the Authority may impose a fine of up to five thousand rupees on such person. 21.3 If anyone does any act contrary to an order or directive given by the Authority under this Act, the Authority may impose a fine of up to twenty-five thousand rupees on such person. 21.4 If anyone does any other act contrary to this Act or the regulations made under this Act, other than those mentioned above, the Authority may impose a fine of up to one thousand rupees on such person. 22. Appeal: A person aggrieved by an order of penalty given by the Authority pursuant to Section 21 may appeal to the Appeal Committee within thirty-five days from the date of receiving such order of penalty. 23. Appeal Committee: 23.1 There shall be an Appeal Committee to hear appeals against orders given by the Authority under Section 9 or 21. 23.2 The Appeal Committee shall consist of the following members:- 23.2.1 Amended by Some Nepal Acts Amendment Act, 2072.A Judge of the High Court ? Chairperson 23.2.2 Two persons designated by the Government of Nepal ? Member 23.3 The Appeal Committee shall have the same powers as a court in respect of examining witnesses, summoning witnesses, taking statements, and requiring production of documents. 23.4 The Appeal Committee may adopt suitable procedures for conducting and disposing of proceedings. 24. Protection of Acts Done in Good Faith: No member of the Committee or the Executive Committee, or employee of the Authority, shall be personally liable for any loss or damage caused by any act done or attempted to be done in good faith in the course of performing their duties under this Act or the rules or regulations made under this Act. Provided that, if any act is done with the intention of causing unnecessary hardship, harassment or trouble to anyone, the concerned person shall be liable therefor. 25.

Delegation of Powers: The Executive Committee may delegate all or some of the powers vested in it under this Act or the rules made under this Act to any member of the Executive Committee, a sub-committee constituted under Section 16, or any officer employee of the Authority. 26. Government of Nepal May Give Directives: The Government of Nepal may give necessary directives to the Authority relating to the formulation and implementation of the physical development plan. It shall be the duty of the Authority to follow such directives. 27. Powers of the Government of Nepal: 27.1 If the Authority does or attempts to do any act contrary to this Act, the Government of Nepal may issue an order to stop such act. 27.2 The Government of Nepal may, keeping in view the public interest, if deemed necessary, annul any order given by the Authority under this Act, wholly or partially. 27.3 If it is determined that the work to be done by the Authority has been completed, or that the Authority has not performed its functions, duties or followed directives, or that it is not necessary to maintain the Authority, the Government of Nepal may dissolve the Authority at any time. 27.4 If the Authority is dissolved pursuant to sub-section (27.3), the rights and liabilities of the Authority shall devolve upon the Government of Nepal. Added by Some Nepal Acts Amendment Act, 2075.27A. Transfer of Cases: (1) If the Authority is dissolved pursuant to Section 27, cases pending adjudication under proceedings before the Authority pursuant to Sections 9 and 21 shall devolve upon the concerned District Court, and cases pending adjudication under proceedings before the Appeal Committee pursuant to Section 23 shall devolve upon the Patan High Court. (2) The rights and liabilities of the Authority shall devolve upon the Government of Nepal, and documents and records shall devolve upon the agency or office designated by the Government of Nepal. 28. Liaison with the Government of Nepal: The Authority shall maintain liaison with the Government of Nepal through Amended by Some Nepal Acts Amendment Act, 2075.the Ministry of Urban Development. 29. Power to Make Rules and Regulations: 29.1 The Government of Nepal may make necessary rules to implement the objectives of this Act. 29.2 Subject to this Act and the rules made under this Act, the Authority may make necessary regulations. 30. Dissolution: 30.1 After the commencement of this Act, the Town Development Committee under the Town Development Act, 2045 shall ipso facto be dissolved.

30.2 After the dissolution of the Town Development Committee pursuant to sub-section (30.1), the work, actions, rights and liabilities of that Committee shall devolve upon the Authority. 31. Transfer of Pending

Cases: After the commencement of this Act, cases pending adjudication under proceedings from the Town Development Committee constituted under the Town Development Act, 2045 shall devolve upon the Authority.

32. Power to Amend the Schedule: The Government of Nepal may, as required, by notification published in the Nepal Gazette, amend, add to or delete from the Schedule.

Schedule (Related to sub-section (2.1.3) of Section 2)

Boundary of the Plan Area

East: From the top ridge of Godavari Bhanjyang, Triveni Danda and Pati Bhanjyang, passing through the watershed east of Amadol, along the top ridge of Rohini Bhanjyang and Kirtike Bhanjyang, up to the top of Manchuri Lekh and Chipu Danda.

West: From Simpani, Kazi Gaun, Bhattarchaur, Dakshinkali, Taluk, along Gurdam Khola, passing through the watershed north of Chhakhel, Chandraagiri Sim Bhanjyang, the watershed east of Masini Gaun, Dahachok Danda, Majuwa Gaun, the watershed east of Bhimdhunga Thumki, up to Bhudkhu and Panchmane Bhanjyang.

North: Along the top ridge of Panchmane Bhanjyang and Shivapuri Lekh, up to Bolang and Chipu Danda.

South: Along the top ridge of Godavari Bhanjyang, passing through the watershed of Dhungakhani Khola, along the top ridge of Bhagwan Danda and Lele Bhanjyang, through Deurali Thumki, Babiya Gaun, the watershed south of Mane, along the Bagmati River, up to Simpani.